



Identity Theft and Fraud Group

Letter Templates



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Identity Theft Victim's Complaint and Affidavit

Average Time to Complete: 10 minutes

Identity Theft Victim's Complaint and Affidavit

A voluntary form for filing a report with law enforcement and disputes with credit reporting agencies and creditors about identity theft-related problems. Visit ftc.gov/idtheft to use a secure online version that you can print for your records.

Before completing this form:

1. Place a fraud alert on your credit reports and review the reports for signs of fraud.
2. Close the accounts that you know, or believe, have been tampered with or opened fraudulently.

About You (the victim)

Now

1. My full legal name:	_____	_____	_____	_____	Leave #3 blank until you provide this form to someone with a legitimate business need, like when you are filing your report at the police station or sending the form to a credit reporting agency to correct your credit report.
	First	Middle	Last	Suffix	
2. My date of birth:	_____				
	mm/dd/yyyy				
3. My Social Security number:	_____				
4. My driver's license:	_____				
	State	Number			
5. My current street address:	_____				
	Number & Street Name			Apt., Ste., etc.	

	City	State	Zip Code	Country	
6. I have lived at this address since:	_____				
	mm/yyyy				
7. My daytime phone: ()	_____		My evening phone: ()	_____	
My email:	_____				

At the Time of the Fraud

8. My full legal name was:	_____	_____	_____	_____	Skip #8-10 if your information has not changed since the fraud.
	First	Middle	Last	Suffix	
9. My address was:	_____				
	Number & Street Name			Apt., Ste., etc.	

	City	State	Zip Code	Country	
10. My daytime phone: ()	_____		My evening phone: ()	_____	
My email:	_____				

Victim's name: _____

Phone number: (_____) _____

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15. Additional information about the crime (for example, how the identity thief gained access to your information or which documents or information were used):

#14 and 15:
Attach additional
sheets as needed.

Documentation

16. I can verify my identity with these documents:

☐ A valid government-issued photo identification card (for example, driver's license, state-issued ID card or passport).

If you are under 16 and don't have a photo-ID, a copy of your birth certificate or a copy of your official school record showing your enrollment and legal address is acceptable.

☐ Proof of residency during the time the disputed charges occurred, the loan was made or the other event took place (for example, a copy of a rental/lease agreement in my name, a utility bill or an insurance bill).

#16:
Reminder: Attach
copies of your
identity documents
when sending
this form to
creditors and credit
reporting agencies.

About the Information or the Accounts

17. The following personal information (such as name, address, Social Security number or date of birth) in my credit report is inaccurate as a result of this identity theft:

A _____

B _____

C _____

18. Credit inquiries from these companies appear on my credit report as a result of this identity theft:

Company Name: _____

Company Name: _____

Company Name: _____

Victim's name: _____

Phone number: () _____

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19. Below are details about the different frauds committed using my personal information.

#19:

If there were more than three frauds, copy this page blank and attach as many additional copies as necessary.

Enter any applicable information that you have, even if it is incomplete or an estimate.

If the thief committed two types of fraud at one company, list the company twice, giving the information about the two frauds separately.

Contact Person: Someone you dealt with, whom an investigator can call about this fraud.

Account Number: The number of the credit or debit card, bank account, loan or other account that was misused.

Dates: Indicate when the thief began to misuse your information and when you discovered the problem.

Amount Obtained: For instance, the total amount purchased with the card or withdrawn from the account.

Name of Institution			Contact Person		Phone Extension
Account Number		Routing Number		Affected Check Number(s)	
Account Type:	☐ Credit	☐ Bank	☐ Phone/Utilities	☐ Loan	
	☐ Government Benefits	☐ Internet or Email	☐ Other		
Select ONE:					
☐ This account was opened fraudulently.					
☐ This was an existing account that someone tampered with.					
Date Opened or Misused (mm/yyyy)		Date Discovered (mm/yyyy)		Total Amount Obtained (\$)	

Name of Institution			Contact Person		Phone Extension
Account Number		Routing Number		Affected Check Number(s)	
Account Type:	☐ Credit	☐ Bank	☐ Phone/Utilities	☐ Loan	
	☐ Government Benefits	☐ Internet or Email	☐ Other		
Select ONE:					
☐ This account was opened fraudulently.					
☐ This was an existing account that someone tampered with.					
Date Opened or Misused (mm/yyyy)		Date Discovered (mm/yyyy)		Total Amount Obtained (\$)	

Name of Institution			Contact Person		Phone Extension
Account Number		Routing Number		Affected Check Number(s)	
Account Type:	☐ Credit	☐ Bank	☐ Phone/Utilities	☐ Loan	
	☐ Government Benefits	☐ Internet or Email	☐ Other		
Select ONE:					
☐ This account was opened fraudulently.					
☐ This was an existing account that someone tampered with.					
Date Opened or Misused (mm/yyyy)		Date Discovered (mm/yyyy)		Total Amount Obtained (\$)	

Victim's name: _____

Phone number: (_____) _____

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Your Law Enforcement Report

20. One way to get a credit reporting agency to quickly block identity the related information from appearing on your credit report is to submit a detailed law enforcement report ("Identity Theft Report"). You can obtain an Identity Theft Report by taking this form to your local law enforcement office, along with your supporting documentation. Ask an officer to witness your signature and complete the rest of the information in this section. It's important to get your report number, whether or not you are able to file in person or get a copy of the official law enforcement report. Attach a copy of any confirmation letter or official law enforcement report you receive when sending this form to credit reporting agencies.

Select ONE:

- ☐ I have not filed a law enforcement report.
- ☐ I was unable to file any law enforcement report.
- ☐ I filed an automated report with the law enforcement agency listed below.
- ☐ I filed my report in person with the law enforcement officer and agency listed below.

Law Enforcement Department

State

Report Number

Filing Date

Officer's Name (please print)

Officer's Signature

(_____)

Badge Number

Phone Number

Did the victim receive a copy of the report from the law enforcement officer? ☐ Yes OR ☐ No

Victim's FTC complaint number (if available): _____

#20:

Check "I have not..." if you have not yet filed a report with law enforcement or you have chosen not to. Check "I was unable..." if you tried to file a report but law enforcement refused to take it.

Automated report: A law enforcement report filed through an automated system, for example by telephone, mail or the Internet, instead of a face-to-face interview with a law enforcement officer.

Victim's name: _____

Phone number: (_____) _____

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Signature

As applicable, sign and date IN THE PRESENCE OF a law enforcement officer, a notary, or a witness.

21. I certify that, to the best of my knowledge and belief, all of the information on and attached to this complaint is true, correct and complete and made in good faith. I understand that this complaint or the information it contains may be made available to federal, state and/or local law enforcement agencies for such action within their jurisdiction as they deem appropriate. I understand that knowingly making any false or fraudulent statement or representation to the government may violate federal, state or local criminal statutes, and may result in a fine, imprisonment or both.

Signature

Date Signed (mm/dd/yyyy)

Your Affidavit

22. If you do not choose to file a report with law enforcement, you may use this form as an Identity Theft Affidavit to prove to each of the companies where the thief misused your information that you are not responsible for the fraud. While many companies accept this affidavit, others require that you submit different forms. Check with each company to see if it accepts this form. You should also check to see if it requires notarization. If so, sign in the presence of a notary. If it does not, please have one witness (non-relative) sign that you completed and signed this Affidavit.

Notary

Witness:

Signature

Printed Name

Date

Telephone Number

(CB) Notification of Fraud to Credit Bureaus

Date:
Name:
Address:

CERTIFIED MAIL
RETURN RECEIPT REQUESTED
OPTIONAL: VIA FAX OR E-MAIL (ENCRYPTED)

To: Fraud Department
Equifax, Experian and TransUnion Credit Bureaus: (see contact information in resources section)
(add report number for each credit bureau if you have one)
Address:

Dear Sir or Madam:

I called the fraud reporting number of _____ credit bureau on _____ to place an initial fraud alert to inform the bureaus that I have learned that I am a victim of identity theft.

☐ I respectfully request that an extended fraud alert be placed on my credit file, and that you send me a free copy of my credit report.

☐ This is a summary of the information that I have learned about the fraud at this time.

On _____, I became aware that I have become the victim of identity theft. I learned about the theft of my identity in the following manner:

I have:

☐ Completed the Federal Trade Commission's ID Theft Affidavit (attached).

☐ Filed an Identity Theft report with a local law enforcement agency (report # _____, officer # _____, phone # (____) _____).

☐ The report is attached (if available).

☐ I have provided a copy of my government issued photo ID.

I respectfully request the following (check all that apply):

☐ Place an extended seven year Fraud Alert on my credit file stating that no credit is to be issued in my name without the credit grantor first calling me at the following telephone number: (____) _____.

- ☐ Please correct your records to show the address listed at the top of this letter is my true address. This has been my address for the past _____ years. Do not change this address without written verification from me. If I move I will notify your office.
- ☐ Please send me a copy of my entire credit report including the inquiries so I may see what fraud has occurred and what fraud may be pending.
- ☐ Please immediately block the following fraudulent items, which appear on my report so they do not appear on my report: (Check all that apply.)
- ☐ Incorrect Social Security number; my correct SSN is: _____
- ☐ Incorrect address; my correct address is: _____
- ☐ Unauthorized new credit card accounts or loans which are not mine: _____
- ☐ Unauthorized credit inquiries (creditors who received my report without my permission): _____
- ☐ Accounts which were taken over or re-opened after closing: _____
- ☐ Other errors or fraud (e.g. showing a joint account with an imposter, student loans not mine. liens which are not mine, etc.) _____
- ☐ Please immediately cease selling my profile to any credit grantor without my permission. I know that my true creditors may see my report.
- ☐ Take my name from all promotional lists permanently.
- ☐ Please add the following 100-word statement which explains this fraud.

- ☐ Notify all credit grantors, employers and/or other agencies who have received my credit report within the last year that there has been fraud committed against me. Provide me a list of the creditors you notified within 30 days of this letter.
- ☐ Please send me any brochures or documents regarding my legal rights and any additional information to help me resolve this fraud situation.

Thank you for your immediate attention to the items above. I look forward to receiving my free credit report. I also appreciate your follow up with regard to the above requests which I am entitled to in accordance with the Fair Credit Reporting Act.

You may reach me during the day at (____) _____ and during the evening at (____) _____. Please direct any correspondence to me at the address on the first page of this letter.

Sincerely,

Enclosed copies:

- ☐ Governmental identification to verify my identity (i.e. driver's license)
- ☐ Utility bill to verify my address
- ☐ Completed formal FTC ID Theft Affidavit
- ☐ Identity theft report from law enforcement agency (Report # _____)
- ☐ Other: _____

(FI/C) Notification of Fraud to Financial Institutions and Credit Grantors

Date:

Name:

Address:

CERTIFIED MAIL

RETURN RECEIPT REQUESTED

OPTIONAL: VIA FAX OR E-MAIL (ENCRYPTED)

Account number:

Fraud department:

Financial institution:

Address:

Phone number:

Dear Sir or Madam (or the specific person you spoke with):

I am writing to you to report that I have become the victim of identity theft. (Check all that apply):

- ☐ Please place a fraud alert on my account profile for all accounts I have with your institution.
- ☐ My address was fraudulently changed to _____.
Please refer to the correct address at the top of this letter and make all appropriate corrections. My address above has been my correct address for since _____.
- ☐ I have learned someone has opened a new account using my personal information (i.e. Social Security number, driver's license).
- ☐ My ___ ATM ___ debit card was stolen (or cloned) and used by a thief. I called your offices on _____ to deactivate the card(s) and spoke with _____. Please verify the cards are no longer active and that the checking account was immediately closed and a new checking was opened in my name with a new account number. I have attached copies of my statement indicating the fraudulent items.
- ☐ Please immediately reimburse me for the funds stolen in the amount of \$ _____ and notify me of a new password.
- ☐ Please do not re-issue me a new debit card with the VISA/MasterCard logo since I understand that this card may be used without a pin online, by phone or by fax by a fraudster and the money will siphoned out of my account without my prior permission. Instead issue me an ATM card which will serve as a bankcard for me to use at ATM machines to obtain cash or make bank transfers and deposits.
- ☐ I have gone online to set up account alerts to notify me immediately of possible fraudulent transfers (or) Please help me set up alerts to notify me by phone or text to notify me of possible fraudulent transfers.
- ☐ Fraudulent electronic transfers of my funds were made from my account on _____ without my permission or initiation to other persons/entities/other accounts. I have no idea what these are. I notified you as soon as I saw these on my online account by calling and speaking with _____ and asked that the account be closed.
- ☐ I found out about these fraudulent transfers from the email alerts I set up with this financial institution. I have copied the account statements and indicated the fraudulent transfers.

- ☐ Please immediately transfer my account to a new account number and reimburse the stolen funds.
- ☐ Please reimburse these stolen funds in the amount of \$ _____ immediately.
- ☐ My own credit card (s) were fraudulently used. There are certain account activities/charges on my credit card account which I did not make. Please deactivate this card and issue me a new credit card. I called your office on _____ and disputed the fraud charges with _____. I have highlighted these fraudulent charges on the statement(s) attached. Please remove these charges along with any finance charges or other charges related to the fraudulent activity and provide me a new password.
- ☐ Notify the credit bureaus that this account is closed due to fraud.
- ☐ New credit cards, loans or bank accounts were fraudulently opened in my name by an identity thief with your financial institution. I did not apply for account number _____. Please immediately close the account and notify the credit bureaus that this is to be removed from my credit report. Please investigate this fraud and provide me all documents of the fraud pursuant to the Fair Credit Reporting Act FCRA 609 e. (See detailed information below.)
- ☐ Pursuant to federal law, for any credit/loan/accounts opened in my name without my permission, I will not be responsible for any charges or losses as I have informed you immediately upon learning of the identity theft.
- ☐ Please note that I notified you as soon as I learned of the fraud by phone and in this letter and I should be reimbursed for all monies stolen from my bank/investment accounts immediately.
- ☐ Include a fraud alert on my new accounts so that no changes in my address nor may any additional persons to be added to my account without verification from me by calling me first on my cell at this number _____. Please provide me with the appropriate contact and procedure for having this done.
- ☐ The following new accounts were fraudulently opened in my name. Please close these accounts:

- ☐ Do not sell or transfer any of these fraudulent debts to other institutions or collection agencies.
- ☐ Please reimburse my funds immediately after the fraud invaded accounts are closed and new accounts are opened in my name.
- ☐ Please respond to within (30) days of your receipt of this letter.
- ☐ Once you have completed your investigation, please correct any errors on my account and provide me with an accurate statement of my accounts, and the results of the investigation.
- ☐ Pursuant to the Fair Credit Reporting Act Section 609 (e), I request that you to me and my law enforcement agency at no charge within 30 days copies of any documents you may have regarding this fraud including:
 - ☐ The address, phone number and password for the fraudulent account opened
 - ☐ The original application and/or forged signature or electronic information
 - ☐ All copies of billing statements and any other correspondence related to this account

- ☐ Any fingerprints, photos or video of the impersonator
- ☐ Application records or screen prints of Internet/phone applications
- ☐ Account statements
- ☐ Payments/charge slips
- ☐ Copies of checks (front and back)
- ☐ Investigator's summary – electronic or otherwise
- ☐ Delivery addresses
- ☐ All records of phone numbers used to activate the accounts or used to access the accounts
- ☐ Any other documents associated with the account
- ☐ Also pursuant to FCRA 609 (e), please copy my fraud investigator at no cost at _____ Police Department at this address _____ regarding the items requested above.
- ☐ Additionally, please also do the following as soon as possible:
 - ☐ Start an investigation of this fraud.
 - ☐ Remove any entries of this account associated with my name.
 - ☐ Assign an investigator to my case who will contact me at my phone number above within no more than 30 days.
 - ☐ Provide me a letter of clearance to be sent to my address within 30 days that I may use to clear my name with the check verification companies.
 - ☐ Please do not sell, distribute, trade, exchange, share, donate, giveaway and/or transfer information about this fraudulent account with any other entity except for purposes of resolving the fraud.
 - ☐ Provide me the name and contact information of any law enforcement agencies with whom you have filed a complaint.
 - ☐ Please send me a letter verifying the reimbursement of the stolen funds within two days and the results of the fraud and identity theft investigation within 30 days.

Thank you for your assistance and I look forward to receiving the information requested above at your earliest convenience. If you have any questions, please call me at (____) _____.

Sincerely,

Enclosed copies:

- ☐ Government issued ID to verify my identity (i.e. driver's license)
- ☐ Utility bill to verify my address
- ☐ Completed FTC ID Theft Affidavit
- ☐ Police report from law enforcement
- ☐ A copy of the FCRA 609e which entitles me and law enforcement to copies of all documents regarding the fraud at no charge within thirty days of my request

(FI/CV) Financial Institution – Check Verification Problems

Date:
Name:
Address:

CERTIFIED MAIL
RETURN RECEIPT REQUESTED
OPTIONAL: VIA FAX OR E-MAIL (ENCRYPTED)

Name of bank or company
Company address
City, state, zip code
Re: Fraudulent checks based on identity theft

RE: ACCOUNT NO.: _____
REFERENCE NO.: _____

Dear Sir or Madam (or the specific person you spoke with):

I am a victim of fraud and identity theft. You are hereby being notified that the checks indicated below are fraudulent. The following has occurred:

- ☐ On or about _____ I learned that a fraudster is writing unauthorized checks against my checking account number _____. Checks numbered ____ to ____ from _____ (bank name) on account number _____ were stolen. This account was closed on _____ by upon my request.
- ☐ I have learned someone has opened a new account using my personal information (i.e. Social Security number, driver's license).
- ☐ Checks have been fraudulently created by another person using my name and account number.
 - ☐ My checking account has been taken over; someone has changed my (name, address, etc) on my account and is now writing checks on that account without my permission.
 - ☐ Check numbers _____ were acid "washed" so that the recipient name was removed and someone's name I don't know was written in so that check was cashed by an unknown person.
 - ☐ Checks have been fraudulently created by another person using my account number to steal money from my account.

I respectfully request the following (check all that apply):

- ☐ Please immediately close this account that I have not opened.
- ☐ Please open a new checking account with a new password for me and immediately reimburse me the stolen funds in the amount of \$ _____ and place the funds in my new account. I have attached the statements and indicating the fraudulent check numbers.
- ☐ Please complete an investigation of this fraud at your bank and provide me the contact information of the investigator on this case so I may assist him/her.

- ☐ Remove any entries of this account associated with my name.
- ☐ Please assign an investigator to my case who will contact me at my phone number above within no longer than 30 days.
- ☐ Send me a letter of clearance within 30 days that I may use to clear my name with the check verification companies.
- ☐ Please do not sell, distribute, trade, exchange, share, donate, giveaway and/or transfer information about this fraudulent account with any other entity except for purposes of resolving the fraud.
- ☐ Provide me the name and contact information of any law enforcement agencies with whom you have filed a report.
- ☐ Notify me of the contact information for any check verification company that you reported these “bad” checks.
- ☐ Send notification to such check verification companies that these checks are fraudulent and that my name should be cleared of any wrongdoing; and provide me documentation of such notification within 30 days.
- ☐ Provide me a letter of verifying the fraud and identity theft due to these fraudulent checks within 30 days.
- ☐ Pursuant to the Fair Credit Reporting Act 609(e), you are required to send me and my law enforcement agency at no charge within 30 days copies of any documents you may have regarding this fraud including:
 - ☐ Video surveillance tapes
 - ☐ Copies of checks (front and back)
 - ☐ Bank representative and investigator notes or electronic messages
 - ☐ Applications for checking accounts
 - ☐ Any other documents related to these fraudulent checks

Please send the above to me at the address above and to the following law enforcement agency within thirty days:

Name of officer: _____

Identity theft report number: _____

Address: _____

Phone number: _____

I have attached the documents listed below my signature for verification for you of my identity and the fraud.

Thank you for your prompt attention to the above requests.

Yours Truly,

Enclosures:

- ☐ Proof of my identity and a utility bill with my name
- ☐ A copy of my identity theft report from law enforcement
- ☐ A copy of my completed FTC Affidavit
- ☐ A copy of the FCRA 609e which entitles me to all documents regarding the fraud

(GA/F) Notification of Fraud to Government Agencies

Date:

Name:

Address:

CERTIFIED MAIL

RETURN RECEIPT REQUESTED

OPTIONAL: VIA FAX OR E-MAIL (ENCRYPTED)

Government agency:

Attn: Fraud Department

Address: (see resource section for addresses)

Dear Sir or Madam:

I recently learned I have been the victim of identity fraud. An imposter has used my name, Social Security number which is _____ and other identifying information to gain credit, open accounts and commit other fraudulent acts. From what I have learned, this person may have used my information in the following manner:

- ☐ I have attached a synopsis of the fraud with the enclosed complete affidavit, which was prepared by the Federal Trade Commission.

I am concerned that the fraudster has also used my name and other identifying information with your agency. Please see below:

- ☐ **(For Postal Inspectors)** My address was fraudulently changed to the fraudster's address located at _____. I saw this address on my credit reports (**or how you learned of the address**) Please forward all mail in my name addressed to the fraudulent address to my real address at the top of this letter and provide me the contact information for the mail carrier(s) who deliver to that address so I may alert him/her to stop delivering mail/packages/other to that fraud address.

- ☐ Please investigate this fraud and share this information with my local law enforcement agency at _____, police report # (attached to this letter) The officer who took my report is _____, and his/her phone number is _____. Please keep me informed as to the investigation and what else I may do to resolve this crime and assist your office.

- ☐ **(For Social Security Administration)** Someone has attempted to work fraudulently using my name and/or Social Security number (**or list what else the impostor has done**). I have learned about this from _____ (IRS notification, Worker's Comp denial, disability or unemployment denial). Please provide me my Personal Earnings and Benefit Statement. (**You can also get this online - see resource at the end of this guide.**) Please also place a fraud alert on my profile at your office and notify me of any other steps I should take.

- ☐ **(For IRS)** I am concerned that the impersonator will use my Social Security number to adversely affect my taxes by gaining employment in my name. Please note my address above and notify me if you receive tax information from a different address. (See specific letter for IRS identity theft and other Tax Fraud included in the next letter in this guide.)
- ☐ **(For Passport Agency)** I am concerned that an impostor has received a valid passport in my name. I have reason to believe this because _____.
I don't have a passport and I am concerned that I must have one and have included my passport application with this letter.
- ☐ Please investigate to see if a new passport has been issued in my name at an alternate address and notify me of such passport.
- ☐ If there is such a passport issued in my name, please send me and my law enforcement officer (see the attached law enforcement identity theft report) a copy of the passport and immediately deactivate it. I have attached all documentation you need to assure my identity and credibility as to the fraud.
- ☐ **(For Department of Motor Vehicles)** I have learned that an impostor obtained a driver's license in my name with his/her picture in your state of _____. I have attached a copy of my true driver's license, but this information should assist you:
- My name as it appears on the license: _____
- Driver's license no.: _____ State where issued: _____
- Date of birth: _____ Date issued: _____
- Address as it appears on the valid license: _____
- ☐ Please provide me information as to any and all driver's licenses issued in my name within the last years. I have been living at my above address since _____. My previous addresses and dates of residency are _____.
- ☐ Please send me a copy of my driving record so I can see if the impersonator has committed any offense in my name.
- ☐ Please place a fraud alert on your computer that I have been victimized by fraud. Please do not issue any new driver's license in my name without first verifying it is me. You may contact me at the above address or call me at my home number, (____) _____ or my cell phone (____) _____ or my work number (____) _____.
- ☐ If a new license has been issued to an imposter, please investigate, deactivate that license and issue me a new driver's license number immediately and send me the license at my home address. See my verification of my identity and the fraud that has occurred by reviewing the attached documents.
- ☐ Please send me any forms to complete and any brochures explaining what I am to do in the above fraudulent situations.
- ☐ Please place a fraud alert on my profile on your computers to help prevent this fraud from continuing or happening again.
- ☐ I am requesting a formal investigation by your agency. Please provide documentation of all evidence of this fraud to me and my fraud investigator at this address: _____

within 30 days of receipt of this letter pursuant to my rights as an identity theft victim. (Pursuant to FCRA 609(e) regarding the victim's rights to receive documents of the fraud; see attached).

- ☐ Please do not change my address without verification from me on my cell phone number or my home address listed at the top of this letter.

Thank you for your kind and anticipated prompt assistance.

Sincerely,

Enclosed copies:

- ☐ Government issued ID to verify my identity
- ☐ Identity theft report from law enforcement
- ☐ FTC ID Theft Affidavit
- ☐ Utility bill to verify my address
- ☐ FCRA 609 (e) documents of fraud

(GA/C) Notification of Fraud to Courts about Civil Judgments

Date:
Name:
Address:

CERTIFIED MAIL
RETURN RECEIPT REQUESTED
OPTIONAL: VIA FAX OR E-MAIL (ENCRYPTED)

Clerk of the _____ [County] _____ Court
[Address of the Court]

[Name of opposing counsel]
[Address of opposing counsel]

Re: Name: _____ [Your name] _____ Case # _____ case of Identity Theft

Dear Clerk of the Court,

I spoke with your office upon learning that there is a case against me (or a judgment against me) which is filed in your court. I am a victim of identity theft. An impersonator has used my identity, Social Security number and other identifying information to obtain credit (or an apartment, file bankruptcy, had an accident, using my identity).

I found out about this case by:

- ☐ internet search
- ☐ the credit reporting agencies which had a judgment listed on my report
- ☐ a writ of attachment on my bank account
- ☐ after being served with a lawsuit
- ☐ other: _____

- ☐ Pursuant to our conversation, please send a copy of the entire file to me at the above address or you may send the electronic file to my email address above. As per our conversation, I have enclosed a check in the amount of \$ _____ to cover the cost of the copies.
- ☐ Please let me know what I need to do to have the judgment expunged (or case dismissed) by this court. I wish to do this without an attorney, if possible to save on fees. Please let me know if this is possible
- ☐ I have enclosed a completed affidavit, which was developed by the Federal Trade Commission for victims of Identity Theft. It explains what has happened. I have also included a copy of the police report (or other law enforcement report). Also enclosed is my state issued identification and a utility bill showing my address.
- ☐ Please also send me information to assist me and a phone number for your Victim Assistance Program.
- ☐ I would be grateful for any directions or brochures explaining your court's rules and policies regarding rectifying identity fraud problems.

I look forward to receiving my file as quickly as possible from the court.

Thank you for your help.

Yours truly,

Enclosed:

- ☐ Identity theft report from law enforcement
- ☐ State-issued photo identification (i.e. driver's license)
- ☐ Completed FTC Affidavit
- ☐ Copy of lawsuit or other evidence
- ☐ Copy of FCRA 609e

(Optional)

To Plaintiff's Counsel.

Re: Fraudulent lawsuit

Case number:

Court:

Dear _____;

I recently found out that I am the victim of fraud. I called your office on _____ and informed your assistant as to the issues. He/she told me to send you a letter. Your office has filed suit against me (or has entered a judgment against me) for non-payment of _____ (or bankruptcy; personal injury suit, or other). I am not the person you intended to sue since I am the victim of identity theft.

- ☐ I have provided all the information required to prove I am a victim of identity theft (attached). You must take action to dismiss this case against me (or set it aside the judgment based on fraud) and provide me all facts related to the fraudulent act that caused this case/judgment against me.
- ☐ Please know that I am entitled to all documents of the fraud pursuant to the Fair Credit Reporting Act 609 (e) (which I have attached) within 30 days and pursuant to this statute you are also to provide copies at no cost to my law enforcement officer _____ at the following address _____. He/she may be reached by phone at _____. Please see the attached identity theft report.

Please may contact me at the phone number above and send the documents to the address at the top of this letter.

Yours truly,

Enclosed:

- ☐ Identity theft report from law enforcement
- ☐ State-issued photo identification (i.e. driver's license)
- ☐ Completed FTC Affidavit
- ☐ Copy of lawsuit or other evidence
- ☐ Copy of FCRA 609 (e)

(GA/U) Notification of Fraud to Utilities

Date:

Name:

Address:

CERTIFIED MAIL

RETURN RECEIPT REQUESTED

OPTIONAL: VIA FAX OR E-MAIL (ENCRYPTED)

Utility Company:

Attn: Fraud Department

Address:

Dear Sir or Madam:

I recently learned I have become the victim of identity fraud. An imposter has used my name, Social Security number and other identifying information to gain credit, open accounts and commit other fraudulent acts. The accounts opened in my name include the following utilities:

- ☐ Electricity
- ☐ Telephone
- ☐ Cable/TV Channel provider/Internet provider
- ☐ Water
- ☐ Gas

- ☐ I have learned that the impostor rented an apartment (house) using my credit and opened utility accounts at the following address: _____
My true address is the address at the top of this letter.

- ☐ The only accounts that should be open in my name and with my billing information are the following:

☐ Electricity Provider: _____

☐ Telephone Company: _____

☐ Water Utility: _____

☐ Cellular Telephone Company: _____

☐ Other: _____

- ☐ Please immediately close the accounts in my name. I shall not be responsible for any charges for the bills for the imposter at that address.
- ☐ I am requesting a formal investigation by your company regarding all accounts opened with my personal information.
- ☐ I have received calls from your company trying to collect unpaid bills.
- ☐ Pursuant the Fair Credit Reporting Act Section 609 (e) I am entitled to all copies of all documents of the fraud to be sent to me at my address above within 30 days at no cost .These would include but are not limited to:
- Applications for service
 - All billing statements and correspondence
 - Copies of Electronic messages
 - Audio recordings between the fraudster and your office
 - Investigation notes
- ☐ I have enclosed a copy of my identity theft report from my local law enforcement and my completed affidavit by the Federal Trade Commission. You are also required to provide copies of the documentation of all evidence of the fraud to my fraud investigator _____ at the law enforcement department at this address: _____ within 30 days of receipt of this letter.
- ☐ Please provide me with the name and contact number of your in house fraud investigator so that I may assist him/her and we may assist the police.

Thank you for your assistance, and I look forward to receiving the documents by no later than _____. Please see the attached to verify my identity and the evidence of the fraud.

Sincerely,

Enclosed copies:

- ☐ Government-issued photo ID to verify my identity
- ☐ Identity theft report from law enforcement
- ☐ Completed ID Theft Affidavit from FTC
- ☐ Utility bill to verify my true address
- ☐ Explanation of Fair Credit Reporting Act 609 (e) to require that you send fraud evidence to me
- ☐ Other: _____

Resources to Assist You

Identity Theft and Privacy Protection

Consumer Action Credit

Provides publications on secured credit
221 Main Street, Suite 480
San Francisco, CA 94105
www.consumer-action.org

Consumer Financial Protection Bureau

P.O. Box 4503
Iowa City, IA 52244
Phone: (855) 411-CFPB (2372)
Español: (855) 411-CFPB (2372)
TTY/TDD: (855) 729-CFPB (2372)
Fax: (855) 237-2392
8 a.m.–8 p.m. Eastern, Monday–Friday
<http://www.consumerfinance.gov>

Federal Agencies and Technology Industry

Federal Citizen Information Center
1275 First Street, 11th Floor
Washington, DC 20417
Phone: (800) FED-INFO
www.onguardonline.gov

Federal Communications Commission (FCC)

445 12th Street SW, Room 5A863
Washington, DC 20554
Phone: (888) 225-5322
www.fcc.gov

The Federal Trade Commission

The Consumer Protection Mission of the FTC is to protect consumers from companies that misinform or overreach with regard to our economy
600 Pennsylvania Ave. NW
Washington, DC 20580
Phone: (877) IDTHEFT (438-4338)
www.ftc.gov

Identity Theft Resource Center

Provides support and assistance to victims of identity theft
Phone: (888) 400-5530
www.idtheftcenter.org

Internal Revenue Service

Identity Fraud: (800) 908-4490
Taxpayer Advocates Office: (800) 829-1040
<http://www.irs.gov/uac/Identity-Protection>
<http://www.irs.gov/uac/Taxpayer-Guide-to-Identity-Theft>

Lexis Nexis

LexisNexis Consumer Disclosure Center
P.O. Box 105295
Atlanta, GA 30348
The Fair and Accurate Credit Transactions Act (FACT Act)
<http://www.lexisnexis.com/risk/factact/>
LexisNexis FACT Act Information Line: (866) 312-8102
C.L.U.E. Reports: (866) 312.8076
A report request form will be sent to you to complete and return

Mari J. Frank, Esq., CIPP

28202 Cabot Road, Suite 300
Laguna Niguel, CA 92677
Phone: (800) 725-0807
mari@identitytheft.org
www.identitytheft.org

Office of Comptroller of the Currency (OCC)

Charters and supervises national banks and federal savings associations
400 7th Street SW, Suite 3E-218
Washington, DC 20219
Phone: (800) 613-6743
www.occ.treas.gov

Social Security Administration

Office of Public Inquiries, Windsor Park Building
6401 Security Blvd
Baltimore, MD 21235
Phone: (800) 772-1213
To report fraud: (800) 269-0271
P.O. Box 17768
Baltimore, MD 21235
www.ssa.gov

U.S. Department of State Passport Services

Consular Lost/Stolen Passport Section
1111 19th Street, NW, Suite 500
Washington, DC 20036
Phone: (877) 487-2778
www.travel.state.gov/passport

U.S. Postal Inspection Service Criminal Investigations

Service Center Attn: Mail Fraud
433 W Harrison Street, Room 3255
Chicago, IL 60699-3255
Phone: (877) 876-2455
<https://postalinspectors.uspis.gov/>

U.S. Securities and Exchange Commission (SEC)

The SEC's Office of Investor Education and Assistance serves investors who complain to the SEC about investment fraud or the mishandling of their investments by securities professionals
Phone: (800) SEC-0330
www.sec.gov

Check-Verification/Check-Guarantee Firms**Certegy Check Services, Inc.**

P. O. Box 30046,
Tampa, FL 33630
Phone: (800) 237-3826
Fax: (727) 570-4936
www.askcertegy.com

Chexsystems, Consumer Relations

7805 Hudson Rd, Suite 100
Woodbury, MN 55125
Phone: (800) 428-9623
Fax: (602) 659-2197
www.consumerdebit.com

Credit Reporting Bureaus:

To order your free reports from all three major credit reporting agencies once a year:
Phone (877) 322-8228
www.annualcreditreport.com

Equifax

To report fraud: (888) 766-0008
www.equifax.com

Experian

To report fraud: (888) 397-3742
www.experian.com

TransUnion

To report fraud: (800) 680-7289
www.transunion.com

To opt out of pre-approved offers of credit for all three credit reporting agencies: (888) 5-OPTOUT [(888) 567-8688]

Data Compilers

To remove your name from lists that companies rent and sell, write or call the following companies:

Mail Preference Service

Direct Marketing Association
P.O. Box 643
Carmel, NY 10512-0643
www.dmaconsumers.org

Federal Trade Commission Do Not Call Registry

(888) 382-1222
(Must call from the phone number that you wish to register)
www.donotcall.gov

Legal Resources**FBI**

Criminal Justice Information Services Division
J. Edgar Hoover Building
935 Pennsylvania Avenue NW
Washington DC 20535-0001
Phone: (202) 324-3000
http://www.fbi.gov/about-us/investigate/cyber/identity_theft

IFCC (Internet Fraud Complaint Center)

FBI Internet Fraud Complaint Center. The Internet Crime Complaint Center (IC3), a partnership between the FBI and the National White Collar Crime Center, allows you to report suspected cases of Internet and e-commerce fraud, including phishing
www.ic3.gov

National Association of Consumer Advocates

1730 Rhode Island NW, Suite 805
Washington, DC 20036
Phone: (202) 452-1989
www.naca.net

FCRA 609(e) (15 U.S.C. § 1681g(e)): Disclosures to Consumers – Information Available to Victims

(e) Information available to victims

(1) In general. For the purpose of documenting fraudulent transactions resulting from identity theft, not later than 30 days after the date of receipt of a request from a victim in accordance with paragraph (3), and subject to verification of the identity of the victim and the claim of identity theft in accordance with paragraph (2), a business entity that has provided credit to, provided for consideration products, goods, or services to, accepted payment from, or otherwise entered into a commercial transaction for consideration with, a person who has allegedly made unauthorized use of the means of identification of the victim, shall provide a copy of application and business transaction records in the control of the business entity, whether maintained by the business entity or by another person on behalf of the business entity, evidencing any transaction alleged to be a result of identity theft to--

(A) the victim;

(B) any Federal, State, or local government law enforcement agency or officer specified by the victim in such a request; or

(C) any law enforcement agency investigating the identity theft and authorized by the victim to take receipt of records provided under this subsection.

(2) Verification of identity and claim. Before a business entity provides any information under paragraph (1), unless the business entity, at its discretion, otherwise has a high degree of confidence that it knows the identity of the victim making a request under paragraph (1), the victim shall provide to the business entity--

(A) as proof of positive identification of the victim, at the election of the business entity--

(i) the presentation of a government-issued identification card;

(ii) personally identifying information of the same type as was provided to the business entity by the unauthorized person; or

(iii) personally identifying information that the business entity typically requests from new applicants or for new transactions, at the time of the victim's request for information, including any documentation described in clauses (i) and (ii); and

(B) as proof of a claim of identity theft, at the election of the business entity--

(i) a copy of a police report evidencing the claim of the victim of identity theft; and

(ii) a properly completed--

(I) copy of a standardized affidavit of identity theft developed and made available by the Commission; or

(II) an [FN1] affidavit of fact that is acceptable to the business entity for that purpose.

(3) Procedures. The request of a victim under paragraph (1) shall--

(A) be in writing;

(B) be mailed to an address specified by the business entity, if any; and

(C) if asked by the business entity, include relevant information about any transaction alleged to be a result of identity theft to facilitate compliance with this section including--

(i) if known by the victim (or if readily obtainable by the victim), the date of the application or transaction; and

(ii) if known by the victim (or if readily obtainable by the victim), any other identifying information such as an account or transaction number.

(4) No charge to victim. Information required to be provided under paragraph (1) shall be so provided without charge.

(5) Authority to decline to provide information. A business entity may decline to provide information under paragraph (1) if, in the exercise of good faith, the business entity determines that--

(A) this subsection does not require disclosure of the information;

(B) after reviewing the information provided pursuant to paragraph (2), the business entity does not have a high degree of confidence in knowing the true identity of the individual requesting the information;

(C) the request for the information is based on a misrepresentation of fact by the individual requesting the information relevant to the request for information; or

(D) the information requested is Internet navigational data or similar information about a person's visit to a website or online service.

(6) Limitation on liability. Except as provided in section 1681s of this title, sections 1681n and 1681o of this title do not apply to any violation of this subsection.

(7) Limitation on civil liability. No business entity may be held civilly liable under any provision of Federal, State, or other law for disclosure, made in good faith pursuant to this subsection.

(8) No new recordkeeping obligation. Nothing in this subsection creates an obligation on the part of a business entity to obtain, retain, or maintain information or records that are not otherwise required to be obtained, retained, or maintained in the ordinary course of its business or under other applicable law.

(9) Rule of construction

(A) In general. No provision of subtitle A of title V of Public Law 106-102, prohibiting the disclosure of financial information by a business entity to third parties shall be used to deny disclosure of information to the victim under this subsection.

(B) Limitation. Except as provided in subparagraph (A), nothing in this subsection permits a business entity to disclose information, including information to law enforcement under subparagraphs (B) and (C) of paragraph (1), that the business entity is otherwise prohibited from disclosing under any other applicable provision of Federal or State law.

(10) Affirmative defense. In any civil action brought to enforce this subsection, it is an affirmative defense (which the defendant must establish by a preponderance of the evidence) for a business entity to file an affidavit or answer stating that--

(A) the business entity has made a reasonably diligent search of its available business records; and

(B) the records requested under this subsection do not exist or are not reasonably available.

(11) Definition of victim. For purposes of this subsection, the term "victim" means a consumer whose means of identification or financial information has been used or transferred (or has been alleged to have been used or transferred) without the authority of that consumer, with the intent to commit, or to aid or abet, an identity theft or a similar crime.

(12) Effective date. This subsection shall become effective 180 days after December 4, 2003.

(13) Effectiveness study. Not later than 18 months after December 4, 2003, the Comptroller General of the United States shall submit a report to Congress assessing the effectiveness of this provision.

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American International Group, Inc. (AIG) is a leading global insurance organization. AIG member companies provide a wide range of property casualty insurance, life insurance, retirement solutions, and other financial services to customers in more than 80 countries and jurisdictions. These diverse offerings include products and services that help businesses and individuals protect their assets, manage risks and provide for retirement security. AIG common stock is listed on the New York Stock Exchange. Additional information about AIG can be found at www.aig.com | YouTube: www.youtube.com/aig | Twitter: @AIGinsurance www.twitter.com/AIGinsurance | LinkedIn: www.linkedin.com/company/aig. These references with additional information about AIG have been provided as a convenience, and the information contained on such websites is not incorporated by reference herein. AIG is the marketing name for the worldwide property-casualty, life and retirement, and general insurance operations of American International Group, Inc. For additional information, please visit our website at www.aig.com. All products and services are written or provided by subsidiaries or affiliates of American International Group, Inc. Products or services may not be available in all countries and jurisdictions, and coverage is subject to underwriting requirements and actual policy language. Non-insurance products and services may be provided by independent third parties. Certain property-casualty coverages may be provided by a surplus lines insurer. Surplus lines insurers do not generally participate in state guaranty funds, and insureds are therefore not protected by such funds. © American International Group, Inc. All rights reserved. 040521